

Before the
FEDERAL MARITIME COMMISSION

MCS INDUSTRIES, INC.

Complainant,

v.

FMC Docket No. 21-05

COSCO SHIPPING LINES CO., LTD. AND
MEDITERRANEAN SHIPPING COMPANY
S.A.

Respondents

MOTION FOR ENLARGEMENT OF TIME FOR EXCHANGE OF INITIAL DISCLOSURES

Rule 141(b) of the Commission's Rules of Practice and Procedure requires that, except as otherwise stipulated or ordered by the Commission or presiding officer, all parties must, within 7 days of service of a respondent's answer to the complaint or Order of Investigation and Hearing and without awaiting a discovery request, provide to each other initial disclosures of certain names, documents and damages to be relied on by the parties. Respondent COSCO SHIPPING Lines Co., Ltd.'s answer was filed September 30, 2021, making the date for initial disclosures (in light of the holiday) September 7, 2021.

Complainant MCS Industries, Inc. and Respondent COSCO SHIPPING Lines Co., Ltd. have been engaged in productive discussions with the shared objective of reaching a prompt negotiated resolution of this dispute if possible. These efforts have drawn attention and resources this week away from the completion of initial discovery-related tasks. In light of this factor, as

1 well as the holiday weekend, we respectfully request the Presiding Officer extend the deadline
2 for exchange of disclosures an additional week, to September 14, 2021. Complainant MCS
3 Industries, Inc. has indicated that it does not object to this request.
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6 Dated this 3rd day of September, 2021.
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11 Matthew Thomas
12 BLANK ROME LLP
13 1825 Eye Street N.W.
14 Washington, DC 20006
15 (202) 772-5971
16 MThomas@BlankRome.com

17
18 Keith B. Letourneau
19 BLANK ROME LLP
20 717 Texas Avenue, Suite 1400
21 Houston, Texas 77002
22 (713) 402-7640
23 KLetourneau@BlankRome.com

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25 **COUNSEL FOR RESPONDENT**
26 **COSCO SHIPPING LINES CO.,**
27 **LTD.**

1 **CERTIFICATE OF SERVICE**

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3 I hereby certify that the foregoing pleading was provided to counsel of record for
4 Complainant MCS Industries, Inc. and Respondent Mediterranean Shipping Company S.A. by
5 email this 3rd day of September, 2021.

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8 Matthew J. Thomas